

April 14, 2026

By: Tedford and Woolley of the
House

Wingard, Frix, Prieto,
Stewart, McIntosh, Bullard,
Grellner, Logan, Deever,
Standridge, and Hamilton of
the Senate

An Act relating to child custody; amending 43 O.S. 2021, Sections 109, as amended by Section 1, Chapter 24, O.S.L. 2024, 110.1, 112, 112.2, as amended by Section 2, Chapter 34, O.S.L. 2024, and 112.5, as last amended by Section 1, Chapter 151, O.S.L. 2025 (43 O.S. Supp. 2025, Sections 109, 112.2, and 112.5), which relate to granting child custody, care and custody of children, and guardianship; creating a presumption of joint custody; modifying custody plan requirements; requiring certain determination to be supported by a preponderance of the evidence; requiring the court to issue written findings and appoint a guardian ad litem in certain circumstances; providing for exceptions; updating statutory language; updating statutory references; making language gender neutral; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 43 O.S. 2021, Section 109, as
2 amended by Section 1, Chapter 24, O.S.L. 2024 (43 O.S. Supp. 2025,
3 Section 109), is amended to read as follows:

4 Section 109. A. Except as provided in subsection I of this
5 section and Section 112.2 of this title and unless otherwise agreed
6 to by the parents, there shall be a presumption, rebuttable by a
7 preponderance of the evidence, that joint legal custody, joint
8 physical custody, and shared parenting time is in the best interest
9 of the child. In ~~awarding~~ granting the custody of a minor unmarried
10 child or in appointing a general guardian for the child, the court
11 shall consider what appears to be in the best interests of the
12 physical ~~and,~~ mental, and moral welfare of the child.

13 B. The court, pursuant to the provisions of subsection A of
14 this section, may grant the care, custody, and control of a child ~~to~~
15 ~~either parent or~~ to the parents jointly or, if the presumption is
16 rebutted, to one parent.

17 For the purposes of this section, the terms joint custody and
18 joint care, custody, and control mean the sharing by parents in all
19 or some of the aspects of physical and legal care, custody, and
20 control of their children.

21 C. ~~If either or both parents have requested joint custody, the~~
22 The parents shall file with the court their plans for the exercise
23 of joint care, custody, and control of their child. The parents of
24 the child may submit a plan jointly, or either parent or both

1 parents may submit separate plans. Any plan shall include, but is
2 not be limited to, provisions detailing the physical living
3 arrangements for the child, child support obligations, medical and
4 dental care for the child, child care or day care for the child,
5 school placement, and visitation and parenting time rights. A plan
6 shall be accompanied by an affidavit signed by each parent stating
7 that the parent agrees to the plan and will abide by its terms. The
8 plan and affidavit shall be filed with the petition for a divorce or
9 legal separation or after the petition is filed.

10 D. The court shall issue a final plan for the exercise of joint
11 care, custody, and control of the child or children, based upon the
12 plan submitted by the parents, separate or jointly, with appropriate
13 changes deemed by the court to be in the best interests of the
14 child. ~~The court also may reject a request for joint custody and~~
15 ~~proceed as if the request for joint custody had not been made.~~

16 E. The parents having joint custody of the child may modify the
17 terms of the plan for joint care, custody, and control. The
18 modification to the plan shall be filed with the court and included
19 with the plan. If the court determines the modifications are in the
20 best interests of the child, the court shall approve the
21 modifications.

22 F. The court also may modify the terms of the plan for joint
23 care, custody, and control upon the request of one parent. The
24

1 court shall not modify the plan unless the modifications are in the
2 best interests of the child.

3 G. 1. The court may terminate a joint custody decree upon the
4 request of one or both of the parents or whenever the court
5 determines the decree is not in the best interests of the child.

6 2. Upon termination of a joint custody decree, the court shall
7 proceed and issue a modified decree for the care, custody, and
8 control of the child as if no such joint custody decree had been
9 made.

10 H. In the event of a dispute between the parents having joint
11 custody of a child as to the interpretation of a provision of the
12 plan, the court may appoint an arbitrator to resolve the dispute.
13 The arbitrator shall be a disinterested person knowledgeable in
14 domestic relations law, child well-being, and family counseling.
15 The determination of the arbitrator shall be final and binding on
16 the parties to the proceedings until further order of the court.

17 If a parent refuses to consent to arbitration, the court may
18 terminate the joint custody decree.

19 I. 1. In every proceeding in which there is a dispute as to
20 the custody of a minor child, a determination by the court supported
21 by a preponderance of the evidence that child abuse, domestic
22 violence, stalking, or harassment has occurred raises a ~~rebuttable~~
23 presumption, rebuttable by clear and convincing evidence, that sole
24 custody, joint legal or physical custody, or any shared parenting

1 time or plan with the perpetrator of child abuse, domestic violence,
2 harassing, or stalking behavior is detrimental to and not in the
3 best interest of the child, and it is in the best interest of the
4 child to reside with the parent who is not a perpetrator of child
5 abuse, domestic violence, harassing, or stalking behavior.

6 2. For the purposes of this subsection:

7 a. "child abuse" shall have the same meaning as "abuse"
8 as defined pursuant to the Oklahoma Children's Code in
9 Section 1-1-105 of Title 10A of the Oklahoma Statutes,

10 b. "domestic violence" means the threat of the infliction
11 of physical injury, any act of physical harm or the
12 creation of a reasonable fear thereof, or the
13 intentional infliction of emotional distress by a
14 parent or a present or former member of the household
15 of the child, against the child or another member of
16 the household including coercive control by a parent
17 involving physical, sexual, psychological, emotional,
18 economic, or financial abuse,

19 c. "harassment" means a knowing and willful course or
20 pattern of conduct by a parent directed at another
21 parent which seriously alarms or is a nuisance to the
22 person, and which serves no legitimate purpose
23 including, but not limited to, harassing or obscene
24 telephone calls or conduct that would cause a

1 reasonable person to have a fear of death or bodily
2 injury, and

3 d. "stalking" means the willful course of conduct by a
4 parent who repeatedly follows or harasses another
5 person as defined in Section 1173 of Title 21 of the
6 Oklahoma Statutes.

7 3. If a parent is absent or relocates as a result of an act of
8 domestic violence by the other parent, the absence or relocation
9 shall not be a factor that weighs against the parent in determining
10 custody or visitation.

11 4. The court shall consider, as a primary factor, the safety
12 and well-being of the child who is the victim of child abuse and of
13 the parent who is the victim of domestic violence, harassment, or
14 stalking behavior, in addition to other facts regarding the best
15 interest of the child.

16 5. The court shall consider the history of the parent causing
17 physical harm, bodily injury, assault, verbal threats, stalking, or
18 harassing behavior, or the fear of physical harm, bodily injury, or
19 assault to another person including the minor child, in determining
20 issues regarding custody and visitation.

21 SECTION 2. AMENDATORY 43 O.S. 2021, Section 110.1, is
22 amended to read as follows:

23 Section 110.1. It is the policy of this state to assure that
24 minor children have frequent and continuing contact with parents who

1 have shown the ability to act in the best interests of their
2 children and to encourage parents to share in the rights and
3 responsibilities of rearing their children after the parents have
4 separated or dissolved their marriage. The court may consider
5 evidence of the ability of the parents to cooperate on issues
6 related to their minor children, as well as evidence of child abuse,
7 domestic violence, stalking, or harassment as defined in paragraph 2
8 of subsection I of Section 109 of this title. To effectuate this
9 policy, ~~if requested by a parent,~~ the court ~~may~~ shall provide
10 substantially equal access to the minor children to both parents at
11 a temporary order or final hearing, unless the court finds that
12 shared parenting would be detrimental to the child. The court shall
13 issue written findings of fact and conclusions of law to support its
14 decision after a final hearing on the merits.

15 SECTION 3. AMENDATORY 43 O.S. 2021, Section 112, is
16 amended to read as follows:

17 Section 112. A. A petition or cross-petition for a divorce,
18 legal separation, or annulment must state whether or not the parties
19 have minor children of the marriage. If there are minor children of
20 the marriage, the court:

21 1. Shall make provision for guardianship, custody, medical
22 care, support, and education of the children;
23
24

1 2. Unless not in the best interests of the children, ~~may~~ shall
2 provide for the visitation of the noncustodial parent with any of
3 the children of the noncustodial parent; and

4 3. May modify or change any order whenever circumstances render
5 the change proper either before or after final judgment in the
6 action; provided, that the amount of the periodic child support
7 payment shall not be modified retroactively or payment of all or a
8 portion of the past due amount waived, except by mutual agreement of
9 the obligor and obligee, or if the obligee has assigned child
10 support rights to the Department of Human Services or other entity,
11 by agreement of the Department or other entity. Unless the parties
12 agree to the contrary, a completed child support computation form
13 provided for in Section 120 of this title shall be required to be
14 filed with the child support order.

15 The social security numbers of both parents and the child shall
16 be included on the child support order summary form provided for in
17 Section 120 of this title, which shall be submitted to the ~~Central~~
18 ~~Case Registry~~ central case registry as provided for in Section 112A
19 of this title with all child support or paternity orders.

20 B. In any action in which there are minor unmarried children,
21 in ~~awarding~~ granting or modifying the custody of the child or in
22 appointing a general guardian for the child, the court shall be
23 guided by the provisions of Section 112.5 of this title and shall
24 consider what appears to be in the best interests of the child.

1 C. 1. When it is in the best interests of a minor unmarried
2 child, the court shall:

3 a. assure children of frequent and continuing contact
4 with both parents after the parents have separated or
5 dissolved their marriage, and

6 b. encourage parents to share the rights and
7 responsibilities of child rearing in order to effect
8 this policy.

9 2. There shall be ~~neither a legal preference nor~~ a presumption
10 ~~for or against~~, rebuttable by a preponderance of the evidence, that
11 joint legal custody, joint physical custody, ~~or sole custody~~ and
12 shared parenting time is in the best interest of the child. If the
13 presumption is rebutted, the court shall issue written findings of
14 fact and conclusions of law that support its decision and appoint a
15 guardian ad litem pursuant to Section 107.3 of this title to assist
16 the court in constructing a parenting time schedule that is
17 consistent with the best interest of the child and maximizes the
18 time each parent has with the child.

19 3. When in the best interests of the child, custody shall be
20 ~~awarded~~ granted in a way which ~~assures~~ ensures the frequent and
21 continuing contact of the child with both parents. When ~~awarding~~
22 granting custody to either parent, the court:

23 a. shall consider, among other facts, which parent is
24 more likely to allow the child or children frequent

1 and continuing contact with the noncustodial parent,
2 and

3 b. shall not prefer a parent as a custodian of the child
4 because of the gender of that parent.

5 4. In any action, there shall be neither a legal preference or
6 a presumption for or against private or public school or home-
7 schooling in ~~awarding~~ granting the custody of a child, or in
8 appointing a general guardian for the child.

9 5. Notwithstanding any custody determination made pursuant to
10 the Oklahoma Children's Code, when a parent of a child is required
11 to be separated from a child due to military service, the court
12 shall not enter a final order modifying an existing custody order
13 until such time as the parent has completed the term of duty
14 requiring separation. For purposes of this paragraph:

15 a. in the case of a parent who is a member of the Army,
16 Navy, Air Force, Marine Corps, or Coast Guard, the
17 term "military service" means a combat deployment,
18 contingency operation, or natural disaster requiring
19 the use of orders that do not permit any family member
20 to accompany the member,

21 b. in the case of a parent who is a member of the
22 National Guard, the term ~~"military service"~~ military
23 service means service under a call to active service
24 authorized by the President of the United States or

1 the Secretary of Defense for a period of more than
2 thirty (30) consecutive days under 32 U.S.C., Section
3 502(f) for purposes of responding to a national
4 emergency declared by the President and supported by
5 federal funds. ~~"Military service"~~ Military service
6 shall include any period during which a member is
7 absent from duty on account of sickness, wounds,
8 leave, or other lawful cause, and

9 c. the court may enter a temporary custody or visitation
10 order pursuant to the requirements of the Deployed
11 Parents Custody and Visitation Act.

12 6. In making an order for custody, the court shall require
13 compliance with Section 112.3 of this title.

14 D. 1. Except for good cause shown, a pattern of failure to
15 allow court-ordered visitation may be determined to be contrary to
16 the best interests of the child and as such may be grounds for
17 modification of the child custody order.

18 2. For any action brought pursuant to the provisions of this
19 section which the court determines to be contrary to the best
20 interests of the child, the prevailing party shall be entitled to
21 recover court costs, attorney fees, and any other reasonable costs
22 and expenses incurred with the action.

23 E. Except as otherwise provided by Section 112.1A of this
24 title, any child shall be entitled to support by the parents until

1 the child reaches eighteen (18) years of age. If a child is
2 regularly enrolled in and attending high school, as set forth in
3 Section 11-103.6 of Title 70 of the Oklahoma Statutes, other means
4 of high school education, or an alternative high school education
5 program as a full-time student, the child shall be entitled to
6 support by the parents until the child graduates from high school or
7 until the age of twenty (20) years, whichever occurs first. Full-
8 time attendance shall include regularly scheduled breaks from the
9 school year. No hearing or further order is required to extend
10 support pursuant to this subsection after the child reaches the age
11 of eighteen (18) years.

12 F. In any case in which provision is made for the custody or
13 support of a minor child or enforcement of such order and before
14 hearing the matter or signing any orders, the court shall inquire
15 whether public assistance money or medical support has been provided
16 by the Department of Human Services, ~~hereafter referred to as the~~
17 ~~Department,~~ for the benefit of each child. If public assistance
18 money, medical support, or child support services under the state
19 child support plan as provided in Section 237 of Title 56 of the
20 Oklahoma Statutes have been provided for the benefit of the child,
21 the Department shall be a necessary party for the adjudication of
22 the debt due to the State of Oklahoma, as defined in Section 238 of
23 Title 56 of the Oklahoma Statutes, and for the adjudication of
24 paternity, child support, and medical insurance coverage for the

1 minor children in accordance with federal regulations. When an
2 action is filed, the petitioner shall give the Department notice of
3 the action according to Section 2004 of Title 12 of the Oklahoma
4 Statutes. The Department shall not be required to intervene in the
5 action to have standing to appear and participate in the action.
6 When the Department is a necessary party to the action, any orders
7 concerning paternity, child support, medical support, or the debt
8 due to the State of Oklahoma shall be approved and signed by the
9 Department.

10 G. In any case in which a child support order or custody order
11 or both is entered, enforced, or modified, the court may make a
12 determination of the arrearages of child support.

13 SECTION 4. AMENDATORY 43 O.S. 2021, Section 112.2, as
14 amended by Section 2, Chapter 34, O.S.L. 2024 (43 O.S. Supp. 2025,
15 Section 112.2), is amended to read as follows:

16 Section 112.2. A. In every case involving the custody of,
17 guardianship of, or visitation with a child, the court shall
18 consider for determining the custody of, guardianship of, or ~~the~~
19 visitation with a child whether any person seeking custody or who
20 has custody of, guardianship of, or visitation with a child:

21 1. Is or has been subject to the registration requirements of
22 the Sex Offenders Registration Act or any similar act in any other
23 state;

1 2. Has been convicted of a crime listed in the Oklahoma Child
2 Abuse Reporting and Prevention Act or in Section 582 of Title 57 of
3 the Oklahoma Statutes;

4 3. Is an alcohol-dependent person or a drug-dependent person as
5 established by clear and convincing evidence and who can be expected
6 in the near future to inflict or attempt to inflict serious bodily
7 harm to himself or herself or another person as a result of such
8 dependency;

9 4. Has been convicted of domestic abuse within the past five
10 (5) years;

11 5. Is residing with an individual who is or has been subject to
12 the registration requirements of the Sex Offenders Registration Act
13 or any similar act in any other state;

14 6. Is residing with a person who has been convicted of a crime
15 listed in the Oklahoma Child Abuse Reporting and Prevention Act or
16 in Section 582 of Title 57 of the Oklahoma Statutes;

17 7. Is residing with a person who has been convicted of domestic
18 abuse within the past five (5) years; or

19 8. Has had custody, guardianship, or visitation rights
20 terminated due to failure to complete or participate in any court-
21 ordered substance abuse or mental health treatment.

22 B. There shall be a ~~rebuttable~~ presumption, rebuttable by clear
23 and convincing evidence, that it is not in the best interests of the
24 child to have custody or guardianship granted to a person who:

- 1 1. Is subject to or has been subject to the registration
2 requirements of the Sex Offenders Registration Act or any similar
3 act in any other state;
- 4 2. Has been convicted of a crime listed in the Oklahoma Child
5 Abuse Reporting and Prevention Act or in Section 582 of Title 57 of
6 the Oklahoma Statutes;
- 7 3. Is an alcohol-dependent person or a drug-dependent person as
8 established by clear and convincing evidence and who can be expected
9 in the near future to inflict or attempt to inflict serious bodily
10 harm to himself or herself or another person as a result of such
11 dependency;
- 12 4. Has been convicted of domestic abuse within the past five
13 (5) years;
- 14 5. Is residing with a person who is or has been subject to the
15 registration requirements of the Sex Offenders Registration Act or
16 any similar act in any other state;
- 17 6. Is residing with a person who has been convicted of a crime
18 listed in the Oklahoma Child Abuse Reporting and Prevention Act or
19 in Section 582 of Title 57 of the Oklahoma Statutes;
- 20 7. Is residing with a person convicted of domestic abuse within
21 the past five (5) years; or
- 22 8. Has had custody, guardianship, or visitation rights
23 terminated due to failure to complete or participate in any court-
24 ordered substance abuse or mental health treatment.

1 C. Custody of, guardianship of, or visitation with a child
2 shall not be granted to any person if it is established that the
3 custody, guardianship, or visitation will likely expose the child to
4 a foreseeable risk of material harm.

5 D. Except as otherwise provided by the Oklahoma Child
6 Supervised Visitation Program, court-ordered supervised visitation
7 shall be governed by the Oklahoma Child Supervised Visitation
8 Program.

9 E. For purposes of this section:

10 1. "Alcohol-dependent person" has the same meaning as such term
11 is defined in Section 3-403 of Title 43A of the Oklahoma Statutes;

12 2. "Domestic abuse" has the same meaning as such term is
13 defined in Section 60.1 of Title 22 of the Oklahoma Statutes;

14 3. "Drug-dependent person" has the same meaning as such term is
15 defined in Section 3-403 of Title 43A of the Oklahoma Statutes; and

16 4. "Supervised visitation" means a program established pursuant
17 to Section 110.1a of this title.

18 SECTION 5. AMENDATORY 43 O.S. 2021, Section 112.5, as
19 last amended by Section 1, Chapter 151, O.S.L. 2025 (43 O.S. Supp.
20 2025, Section 112.5), is amended to read as follows:

21 Section 112.5. A. Custody or guardianship of a child may be
22 ~~awarded~~ granted to:

23 1. A parent or to both parents jointly;

24 2. A grandparent;

1 3. A person who was indicated by the wishes of a deceased
2 parent;

3 4. A relative of either parent;

4 5. The person in whose home the child has been living in a
5 wholesome and stable environment including, but not limited to, a
6 foster parent; or

7 6. Any other person deemed by the court to be suitable and able
8 to provide adequate and proper care and guidance for the child.

9 B. In applying subsection A of this section, a court shall
10 ~~award~~ grant custody or guardianship of a child to a parent, unless a
11 nonparent proves by clear and convincing evidence that:

12 1. For a period of at least twelve (12) months out of the last
13 fourteen (14) months immediately preceding the commencement of the
14 custody or guardianship proceeding, the parent has willfully failed,
15 refused, or neglected to contribute to the support of the child:

16 a. in substantial compliance with a support provision or
17 an order entered by a court of competent jurisdiction
18 adjudicating the duty, amount, and manner of support,
19 or

20 b. according to the financial ability of the parent to
21 contribute to the support of the child if no provision
22 for support is entered by a court of competent
23 jurisdiction, or an order of modification subsequent
24 thereto.

1 For purposes of this paragraph, incidental or token financial
2 contributions shall not be considered in establishing whether a
3 parent has satisfied his or her obligation under subparagraphs a and
4 b of this paragraph; or

5 2. a. ~~the~~ The child has been left in the physical custody of
6 a nonparent by a parent or parents of the child for
7 one (1) year or more, excluding parents on active duty
8 in the military, and

9 b. ~~the~~ The parent or parents have not maintained regular
10 visitation or communication with the child.

11 For purposes of this paragraph, incidental or token visits or
12 communications shall not be considered in determining whether a
13 parent or parents have regularly maintained visitation or
14 communication.

15 C. In applying subsection A of this section, a court shall
16 ~~award~~ grant custody or guardianship of a child to a parent, unless
17 the court finds that the parent is affirmatively unfit. There shall
18 be a ~~rebuttable~~ presumption, rebuttable by clear and convincing
19 evidence, that a parent is affirmatively unfit if the parent:

20 1. Is or has been subject to the registration requirements of
21 the ~~Oklahoma~~ Sex Offenders Registration Act or any similar act in
22 any other state, except as provided in subsection D of this section;

23 2. Has been convicted of a crime listed in Section 582 of Title
24 57 of the Oklahoma Statutes;

1 3. Is an alcohol-dependent person or a drug-dependent person as
2 established by clear and convincing evidence and who can be expected
3 in the near future to inflict or attempt to inflict serious bodily
4 harm to himself or herself or another person as a result of such
5 dependency;

6 4. Has been convicted of domestic abuse within the past five
7 (5) years;

8 5. Is residing with a person who is or has been subject to the
9 registration requirements of the ~~Oklahoma~~ Sex Offenders Registration
10 Act or any similar act in any other state;

11 6. Is residing with a person who has been convicted of a crime
12 listed in Section 843.5 of Title 21 or in Section 582 of Title 57 of
13 the Oklahoma Statutes;

14 7. Is residing with a person who has been convicted of domestic
15 abuse within the past five (5) years; or

16 8. Has been convicted of a crime listed in the Oklahoma Child
17 Abuse Reporting and Prevention Act.

18 D. In applying subsection A of this section, a court shall not
19 ~~award~~ grant custody or guardianship of a child to any person who has
20 been convicted, whether upon a verdict or plea of guilty or upon a
21 plea of nolo contendere, or received a suspended sentence or any
22 probationary term, or is currently serving a sentence or any form of
23 probation or parole in a court in any state ~~of~~ for any of the
24 following crimes:

- 1 1. Sexual abuse or sexual exploitation of a child~~7~~ as provided
2 in Section 843.5 of Title 21 of the Oklahoma Statutes;
- 3 2. Child endangerment, if the offense involved sexual abuse of
4 a child~~7~~ as provided in Section 852.1 of Title 21 of the Oklahoma
5 Statutes;
- 6 3. Kidnapping, if the offense involved sexual abuse or sexual
7 exploitation of a child~~7~~ as provided in Section 741 of Title 21 of
8 the Oklahoma Statutes;
- 9 4. Incest~~7~~ as provided in Section 885 of Title 21 of the
10 Oklahoma Statutes;
- 11 5. Forcible sodomy of a child~~7~~ as provided in Section 888 of
12 Title 21 of the Oklahoma Statutes;
- 13 6. Child stealing, if the offense involved sexual abuse or
14 sexual exploitation~~7~~ as provided in Section 891 of Title 21 of the
15 Oklahoma Statutes;
- 16 7. Procuring minors for participation in child sexual abuse
17 material~~7~~ as provided in Section 1021.2 of Title 21 of the Oklahoma
18 Statutes;
- 19 8. Consent to participation of minors in child sexual abuse
20 material~~7~~ as provided in Section 1021.3 of Title 21 of the Oklahoma
21 Statutes;
- 22 9. Facilitating, encouraging, offering, or soliciting sexual
23 conduct with a minor by use of technology~~7~~ as provided in Section
24 1040.13a of Title 21 of the Oklahoma Statutes;

1 10. Distributing child sexual abuse material, as provided in
2 Section 1040.13 of Title 21 of the Oklahoma Statutes;

3 11. Possession, purchase, or procurement of child sexual abuse
4 material, as provided in Section 1024.2 of Title 21 of the Oklahoma
5 Statutes;

6 12. Aggravated possession of child sexual abuse material, as
7 provided in Section 1040.12a of Title 21 of the Oklahoma Statutes;

8 13. Procuring a child under eighteen (18) years of age for
9 ~~prostitution~~, child sex trafficking as provided in Section 1087 of
10 Title 21 of the Oklahoma Statutes;

11 14. Inducing, keeping, detaining, or restraining a child under
12 eighteen (18) years of age for ~~prostitution~~, child sex trafficking
13 as provided in Section 1088 of Title 21 of the Oklahoma Statutes;

14 15. First degree rape, as provided in Section 1114 of Title 21
15 of the Oklahoma Statutes;

16 16. Lewd or indecent proposals or acts to a child under sixteen
17 (16) years of age, as provided in Section 1123 of Title 21 of the
18 Oklahoma Statutes; or

19 17. Solicitation of minors in any crime provided in subsection
20 B of Section 1021 of Title 21 of the Oklahoma Statutes.

21 E. Subject to subsection F of this section, a custody
22 determination made in accordance with subsections B and C of this
23 section shall not be modified unless the person seeking the
24 modification proves that:

1 1. Since the making of the order sought to be modified, there
2 has been a permanent, material, and substantial change of conditions
3 that directly affects the best interests of the child; and

4 2. That as a result of such change of circumstances, the child
5 would be substantially better off with regard to ~~its~~ his or her
6 temporal, mental, and moral welfare if custody were modified.

7 F. If the custody determination made in accordance with
8 subsections B and C of this section indicates that custody is
9 temporary, the determination may be modified upon a showing that the
10 conditions which led to the custody or guardianship determination no
11 longer exist.

12 SECTION 6. This act shall become effective July 1, 2027.

13 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
14 April 14, 2026 - DO PASS AS AMENDED BY CS
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